

UNIVERSITY OF PORT HARCOURT

FACULTY OF LAW

NIGERIAN LEGAL SYSTEM II

TOPIC: TYPES AND JURISDICTION OF COURTS

SUPERIOR COURTS OF RECORD

INTRODUCTION

Courts may be classified into superior courts and inferior courts. Superior courts have wider powers than inferior courts and are referred to as courts of unlimited jurisdiction. The term jurisdiction simply means the power of a court to hear and determine the subject matter in controversy between parties to a case. It is the legal authority given to a court by the law establishing it.

In **Onyenuchey v. Military Governor of Imo State [1997] 1 NWLR 429**, the court highlighted the following as elements of jurisdiction:

- a. the court must have cognizance of the class of cases to which the one to be adjudicated belongs to
- b. the proper parties must be present, and
- c. the point to be decided must be in substance and effect within the issue.

However, Federal and State legislatures may expand the jurisdiction of courts under their immediate legislative control. But no legislature can subtract from or reduce the jurisdiction of a court established under the constitution except by way of constitutional amendment.

It must be noted that federal courts are normally financed and controlled by federal organs while state courts are financed and controlled by state organs. The federal courts listed under **Chapter VII Part 1** are the **Supreme Court, Court of Appeal, Federal High Court, High Court of the FCT, Sharia Court of Appeal of the FCT, and Customary Court of Appeal of the FCT.**

The state courts listed in **Part 2 of Chapter VII** are the state High Court, Sharia Court of Appeal of the states and the Customary Court of Appeal of the states. There is however one single hierarchy of courts in Nigeria.

SUPREME COURT

The Supreme Court consists of the Chief Justice of Nigeria (CJN) and other Justices of the Supreme Court which shall not exceed 21 in number as may be prescribed by an Act of the National Assembly – See **Section 230 CFRN 1999.**

By **Section 231(1)**, appointment to the office of the CJN and other Justices of the Supreme Court is made by the President on the recommendation of the National Judicial Council (NJC) subject to confirmation by the Senate.

Note: that for a person to be appointed as CJN or Justice of the Supreme Court, such a person must have been qualified to practice law for a period of not less than 15 years – See **Section 231 (3) CFRN 1999.**

For the purposes of exercising its jurisdiction, the Supreme Court **is duly constituted** by a panel of **not less than 5 Justices** of the Supreme Court. However the Supreme Court is constituted by 7 Justices in cases where:

1. The court is sitting to exercise its original jurisdiction,
2. Where the court is sitting to consider appeals on the interpretation of the constitution, or
3. In cases of breaches of fundamental rights provisions of the constitution.

ORIGINAL JURISDICTION – **Section 232 CFRN 1999**

The Supreme Court has exclusive original jurisdiction in any dispute between the Federation and a state or between states if such dispute involves either any question of law or fact on which the existence or extent of any legal right depends – See **Section 232(1) CFRN 1999.**

Note that in addition to the jurisdiction conferred on the Supreme Court by the constitution, the Supreme Court shall have exclusive original jurisdiction in any dispute between:

- a. the National Assembly and the President
- b. the National Assembly and a state House of Assembly, and
- c. the National Assembly and a state of the Federation – SEE: **Section 1 (1) of Supreme Court (Additional Original Jurisdiction) Act** CAP S16 LFN 2004.

APPELLATE JURISDICTION – **Section 233 CFRN 1999**

The Supreme Court has exclusive jurisdiction to hear and determine **appeals** from the Court of Appeal in both civil and criminal appeal cases – See **Section 233 CFRN 1999.**

Note that appeals to the Supreme Court **could be appeals as of right or appeals with leave of either the Supreme Court or the Court of Appeal.** However no appeal shall lie to any other person or body from the determination of the Supreme Court. That means the decisions of the Supreme Court are final.

COURT OF APPEAL

The Court of Appeal consists of the President of the Court of Appeal (PCA) and such other Justices of the Court of Appeal which shall not be less than 49 in number, 3 of which must be

learned in Islamic personal law and 3 of which must be learned in customary law as may be prescribed by an Act of the National Assembly – See **Section 237 CFRN 1999**.

The PCA is appointed by the President on the recommendation of the NJC subject to confirmation by the Senate, whereas the other Justices of the Court of Appeal are also appointed by the President on the recommendation of the NJC but no confirmation of the Senate is required – See **Section 238 CFRN 1999**.

Note: that for a person to be appointed as a Justice of the Court of Appeal, such a person must be qualified to practice law for a period of not less than 12 years.

For the purposes of hearing and determining appeals, the Court of Appeal is **duly constituted by a panel of not less than 3 Justices of the Court of Appeal**. Where an appeal is from a Sharia Court of Appeal, it shall be constituted by not less than 3 Justices of the Court of Appeal who are learned in Islamic personal law. Where the appeal is from a Customary Court of Appeal it shall be constituted by not less than 3 Justices learned in customary law.

ORIGINAL JURISDICTION – Section 239 CFRN 1999

The Court of Appeal has exclusive original jurisdiction to determine any question whether:

- a. a person has been validly elected to the office of President or Vice-President,
- b. the office of the President or Vice-President has ceased or
- c. the office of the President or Vice-President has become vacant

APPELLATE JURISDICTION – Section 240 CFRN 1999

The Court of Appeal has exclusive appellate jurisdiction to hear and determine appeals from the Federal High Court, the High Court of FCT, state High Courts, Sharia Court of Appeal of the FCT, States Sharia Court of Appeal, Customary Court of Appeal of the FCT, states Customary Court of Appeal, a Courts martial or other tribunals as may be prescribed by an Act of the National Assembly.

Appeals to the Court of Appeal could be appeals as of right or appeals with leave of either the lower Court or the Court of Appeal. Appeals lie as of right from the Customary Court of Appeal to the Court of Appeal in civil proceedings with respect to questions of customary law and other matters as may be prescribed by an Act of the National Assembly.

Note that where an appeal does not raise a question of customary law, such an appeal does not lie to the Court of Appeal and the Court of Appeal is entitled to decline jurisdiction – See **Hirnor v. Yongo [2003] 30 W.R.N 38**. The above legal position also applies in appeals from the Sharia Court of Appeal to the Court of Appeal in civil proceedings with respect to questions of Islamic personal law.

Appeals lie as of right to the Court of Appeal from the Code of Conduct Tribunal and from the Election Petition Tribunals established under the constitution.

FEDERAL HIGH COURT

The Federal High Court consists of the Chief Judge of the Federal High Court and such number of Judges of the Federal High Court as may be prescribed by an Act of the National Assembly.

The Chief Judge of the Federal High Court is appointed by the President on the recommendation of the NJC subject to confirmation by the Senate, whereas the other Judges of the Federal High Court are appointed by the President on the recommendation of the NJC but no confirmation of Senate is required – See **Section 250 CFRN 1999**. For a person to be appointed as the Chief Judge or Judge of the Federal High Court, such a person must be qualified to practice law for a period of not more than less than 10 years.

Note that for the purposes of exercising any jurisdiction conferred on it by the constitution or by an Act of the National Assembly, the Federal High Court is **duly constituted if it consists of at least one Judge of that court.**

JURISDICTION OF THE FEDERAL HIGH COURT – Section 251 CFRN 1999

The Federal High Court has exclusive jurisdiction in civil causes and matters where the federal government or any of its agencies is a party in addition to any other jurisdiction as may be conferred on it by an Act of the National Assembly – See the case of **National Electric Power Authority v. Edgebenro [2003] 9 W.R.N1.**

Note that there is nothing to suggest that both the Federal High Court and states High Court have concurrent jurisdiction to entertain matters specified under **S. 251 (1) paragraphs (q) and (r) CFRN 1999.**

This means that the State High Court does not have jurisdiction in civil causes or matters arising from the administration, management and control of the federal government, the operation and interpretation of the constitution as it affects the federal government and any action or proceedings affecting the validity of any action or decision of the federal government.

The Federal High Court also exercises jurisdiction with respect to treason, treasonable felony and allied matters, as well as criminal causes and matters in respect of which jurisdiction is conferred under **S. 251 (1)** – See **Mandara v. Attorney General of the Federation [1984] 1 S.C.L.N.R 311** and also **S. 251 (2) and (3) CFRN 1999**

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STATE HIGH COURT

The High Court of a state consists of the Chief Judge of the state and such other number of Judges of the High Court as may be prescribed by a Law of the House of Assembly of that state – See **Section 270 CFRN 1999.**

The Chief Judge of a state is appointed by the Governor of the state on the recommendation of the NJC subject to confirmation by the House of Assembly of that state, while the Judges of the High Court of a state are appointed by the Governor of the state on the recommendation of the NJC without the requirement for confirmation by the House of Assembly – See **Section 271 CFRN 1999**.

For a person to be appointed as a Judge of the High Court of a state, such a person must be qualified to practice law for a period of not more than less than 10 years.

Note that for the purposes of exercising any jurisdiction conferred on it by the constitution or any law, the High Court of a state is duly constituted if it consists of at least one Judge of that court.

JURISDICTION OF THE STATE HIGH COURT – Section 272 CFRN 1999

Subject to the jurisdiction of the Federal High Court, the state High Court has jurisdiction to hear and determine civil proceedings in which the existence or extent of a legal right, power, duty, liability, privilege, interest, obligation or claim is in issue.

CUSTOMARY COURT OF APPEAL OF A STATE

The Customary Court of Appeal of a state consists of the President of the Customary Court of Appeal and such other number of Judges of the Customary Court of Appeal as may be prescribed by Law made by the House of Assembly of that state – See **Section 280 CFRN 1999**. The Customary Court of Appeal is established for states that require it.

The President of the Customary Court of Appeal is appointed by the Governor of the state on the recommendation of the NJC subject to confirmation by the House of Assembly of the state.

The Judges of the Customary Court of Appeal are appointed by the Governor of the state on the recommendation of the NJC but no confirmation is required. Note that for a person to be appointed as a President or Judge of the Customary Court of Appeal, such a person must be qualified to practice law for a period of not less than 10 years AND, in the opinion of the NJC such a person must have considerable knowledge and experience in the practice of customary law.

JURISDICTION OF STATE CUSTOMARY COURT OF APPEAL – Section 282 CFRN 1999

The Customary Court of Appeal of a state exercises appellate and supervisory jurisdiction in civil proceedings involving questions of customary law as may be prescribed by the House of Assembly of such a state.

Note that for the purposes of exercising any jurisdiction conferred on it by the constitution or any law, the Customary Court of Appeal of a state is duly constituted if it consists of at least 3 Judges of that court.

SHARIA COURT OF APPEAL OF A STATE

The Sharia Court of Appeal of a state consists of the Grand Kadi of the Sharia Court of Appeal and such other number of Kadis of the Sharia Court of Appeal as may be prescribed by Law made by the House of Assembly of that state – See **Section 275 CFRN 1999**. The Sharia Court of Appeal is established for states that require it.

The Grand Kadi of the Sharia Court of Appeal is appointed by the Governor of the state on the recommendation of the NJC subject to confirmation by the House of Assembly of the state. The Kadis of the Sharia Court of Appeal are appointed by the Governor of the state on the recommendation of the NJC but no confirmation is required.

Note that for a person to be appointed as a Grand Kadi or Kadi of the Sharia Court of Appeal, such a person must be qualified to practice law for a period of not less than 10 years and has obtained a recognized qualification in Islamic law from an institution acceptable to the NJC or he either has considerable knowledge and experience in the practice of Islamic law or he is a distinguished Islamic scholar.

JURISDICTION OF STATE SHARIA COURT OF APPEAL – Section 277 CFRN 1999

The Sharia Court of Appeal of a state exercises appellate and supervisory jurisdiction in civil proceedings involving questions of Islamic personal law as may be prescribed by the House of Assembly of such a state – See **Section 277(2) CFRN 1999**.

The court may entertain any subject of Islamic personal law if all the parties to the action are Muslims or where all the parties being Muslims have requested the court of first instance in accordance with Islamic personal law.

Note that for the purposes of exercising any jurisdiction conferred on it by the constitution or any law, the Sharia Court of Appeal of a state is duly constituted if it consists of at least 3 Kadis of that court.

CONCLUSION

Any decision reached by a court without jurisdiction goes to nothing and such a proceeding is a nullity. In **Emuze v. University of Benin [2003] 30 W.R.N 91 at 103** the Supreme Court held as follows:

“Jurisdiction is a threshold issue. It is so radical that it forms the foundation of adjudication. If a court lacks jurisdiction, it also lacks the necessary competence to try the issue before it. A defect in competence is fatal for the proceedings are null and void ab initio, however well conducted and well decided they may otherwise be.”

TUTORIAL QUESTIONS

1. Discuss the original and appellate jurisdiction of the Court of Appeal.
2. Discuss the structure of the Supreme Court with reference to:
 - a. The procedure and qualification for appointment of Justices; and
 - b. The constitution of the court for the purposes of exercising of its jurisdiction.
3. With reference to the Sharia Court of Appeal of a state and the Customary Court of Appeal of a state discuss the view that 'one of the requirements for a court to have jurisdiction, it must be properly constituted with regard to its members and their individual qualification'.